

With respect to the motion to compel JSP’s compliance, Plaintiff shows that JSP has not produced all responsive documents despite agreeing to in response to the subject document requests. (Declaration of James G. Higgins, ¶¶ 6, 9.) JSP implicitly concedes it has not produced all responsive documents. It responds in Opposition that, upon receipt of the motion, it reached out to Plaintiff to provide a date certain for production (July 31, 2026). Plaintiff disregarded that offer and proceeded with its motion.

Based on the foregoing, the motion to compel JSP’s compliance with its agreement to produce responsive documents is GRANTED. JSP shall do so by July 31, 2026.

The Court DENIES the parties’ competing requests for sanctions under section 2031.310, subdivision (h), in light of the mixed success of Plaintiff’s motion and JSP’s opposition.

JSP does not only move for sanctions under section 2031.310, but also under sections 2023.010 and 2023.020 based on Plaintiff’s failure to meet and confer regarding JSP’s purportedly deficient *supplemental* responses prior to bringing the present motion. “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (§ 2023.020.) Here, JSP shows that, following receipt of JSP’s supplemental responses to the subject document demands on May 15, 2026, Plaintiff failed to meet and confer on the supplemental responses prior to bringing the motion. (Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”) ¶ 4.) Plaintiff does not meaningfully dispute this in Reply. Plaintiff only contends that it properly met and conferred regarding the motion to compel JSP’s compliance with the production of documents, which fails to address the basis for JSP’s sanctions request.

Thus, JSP’s request for sanctions pursuant to section 2023.020 is GRANTED IN PART. The Court finds 7 combined hours preparing the opposing documents reasonable. (Pinto Decl., ¶¶ 6-7.) However, the Court does not find the hourly rate charged by counsel to be within the reasonable or customary range in the Napa County. (See Pinto Decl. at ¶¶ 7-8.) The Court reduces the hourly rates to \$300 for associate attorney McKee and \$500 for partner attorney Richmond. Based on the foregoing, Plaintiff is ordered to pay to JSP, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (5 hrs x \$300/hr + 2 hrs x \$500) = \$2,500.

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Kevin Coluccio et al v. Thomas Trainor et al

25CV001138

CROSS-DEFENDANT CALMAT CO. dba SHAMROCK MATERIAL’S DEMURRER TO
CROSS-COMPLAINT, THREE SOLES INC. dba TRAINOR BUILDERS’ CROSS-
COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in
Dept. A.

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DEMURRER

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiff is granted 10 Court days' leave, from Notice of Entry of Order, to file a Second Amended Complaint. This leave is limited, however, to making amendments aimed at properly substituting Rene Trejo, Elva Trejo, and Rene Trejo Jr. for fictitiously named Doe Defendants.⁶ Moving Defendants shall serve and file Notice of Entry of Order. The August 4, 2026, Case Management Conference is continued to October 8, 2026, at 8:30 am in Department A.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendants Rene Trejo, Elva Trejo, and Rene Trejo Jr. (collectively Defendants) demur, pursuant to Code of Civil Procedure 430.10, subdivisions (e) and (f), to Plaintiff's First Amended Complaint (FAC). Defendants argue that the FAC alleges facts that demonstrate that the claims asserted against them are barred by the statute of limitations.

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781 (*Geneva Towers*).)

The original Complaint, filed August 27, 2025, purported to assert a cause of action for general negligence involving a motor vehicle against CSAA Insurance Group and Does 1 through 4. It did not name any of the moving Defendants. On January 14, 2026, Plaintiff filed the Amended Complaint asserting a cause of action for general negligence involving a motor vehicle against each of the moving Defendants and Does 1 through 3, but not against CSAA Insurance Group. The Amended Complaint (like the original Complaint) contains an allegation that "date

⁶ Any other amendment requires additional leave of Court.